

Civil Procedure—Practice Essay Problem #2

Due October 2, 2026, by 7:00pm

Instructions: This problem consists of one essay question, based on the following fact pattern. The problem set is three pages long—make sure you have (and read!) all three pages. Please answer the essay prompt in a separate document, then title your document Lastname_Firstname_Problem2 and submit via Canvas.

This practice exercise is graded *for completion only*. The prompt contains a suggested word limit. You may use your notes and casebook if you like, but I suggest using this practice essay to approximately simulate exam conditions—i.e., closed book and closed note—which includes paying close attention to the word limit.

The following facts are the background for the essay question:

You are a law clerk for a trial court in the State of O’Quinn. You are working on a case called *Persimmon v. Wags-a-Lot Pet Clinic*. The Plaintiff in the case, Dr. Persimmon, is a veterinarian. She argues that she was “constructively fired” by the Defendant, Wags-a-Lot Pet Clinic, in violation of O’Quinn State employment law.

The parties have now finished conducting discovery. And both the Plaintiff and the Defendant have filed motions for summary judgment. Notably, the State of O’Quinn uses the exact same standard for summary judgment that a federal court would. The following materials contain all of the relevant deposition testimony from the case, as well as an excerpt from an O’Quinn State Supreme Court case, *Bates*, that defines the relevant legal standard for “constructive firing” claims.

Your judge asks you to write an objective memo, in IRAC form, advising the judge how to rule on the parties’ motions for summary judgment. Your judge says 1,100 words max.

Excerpt from the case *Bates v. Happy Paws Pet Clinic*, O’Quinn State Supreme Court

As we have explained in our prior cases, under O’Quinn state law, it is well established that a veterinary clinic may not fire an employee for reporting alleged malpractice by a fellow veterinarian. Moreover, even if an employee who reports such misconduct by a colleague is not *formally* fired from their job, that employee can *still* show that their employer unlawfully retaliated against them for reporting misconduct if the employee shows that they were “constructively fired,” meaning

that they were, for all practical purposes, effectively fired by their employer in retaliation for reporting misconduct by a colleague.

To show that they were constructively fired under this doctrine, the employee must show that: (1) in retaliation for the employee having reported a colleague's misconduct, (2) the employer intentionally took steps to worsen the employee's working conditions, and (3) a reasonable person would find those worsened working conditions to be intolerable. Our prior cases have held that putting an employee into a metaphorical "total freeze" with "no meaningful work" at all to do is "intolerable," but we have also noted that "just reducing an employee's job responsibilities, with no drop in pay, is not sufficiently 'intolerable.'"

Excerpt from Deposition of Dr. Klaus, Managing Director, Wags-a-Lot

Q: Please state your job position and describe your workplace.

A: I'm the Managing Director of Wags-a-Lot Pet Clinic. It's a veterinary clinic in the State of O'Quinn.

Q: And who is Dr. Persimmon?

A: She was one of our clinic's best vets. For about ten years working with us, she had dozens and dozens of regular patients. Then in September 2022, she reported what she thought was malpractice by one of her colleagues, Dr. Wilder. We investigated pretty thoroughly, but we couldn't find anything at all wrong, so we moved on.

Q: Then what happened?

A: Dr. Persimmon strongly disagreed with our decision. After that, Dr. Persimmon was consistently very critical of others in the workplace and seemed generally displeased with colleagues and the clinic. And her clients began asking to see other doctors when they called to make their appointments—I think they noticed the change in bedside manner when Dr. Persimmon was working with them, and I imagine they preferred other vets. Eventually, Dr. Persimmon told us she was fed up working at Wags-a-Lot and was leaving to start her own clinic. We certainly never took any formal actions to fire her!

Excerpt from Deposition of Dr. Persimmon

Q: What was it like working at Wags-a-Lot?

A: For about a decade, it was great. I had tons and tons of regular clients, and I loved seeing their pets every year. They always asked to see me for their regular checkups or any issues that came up that needed care. But then things went kind of sideways. I saw Dr. Wilder, in the pharmacy, replace the pills in a pill bottle with sugar pills, then he gave the bottle to a client for their new kitten, saying, “Here’s your prescription. Tigger should feel better soon!” I reported it to the Managing Director, Dr. Klaus, but as far as I know, he didn’t do anything about it. I think he was worried about offending Dr. Wilder, who has some powerful friends on the state board of veterinary medicine.

Q: What happened after that?

A: Just a few days after I reported Dr. Wilder, Dr. Klaus told me that Wags-a-Lot was moving my office to the basement of the building. And right about then, all of the sudden, I didn’t have any clients. I went from having packed days seeing pets from 9am to 6pm, and then suddenly zilch, nada, I’d go days with only one or two patients to see. But my colleagues still had full days. Not to sound too paranoid or anything, but my best guess is that the front desk was lying to my regular patients whenever they called and telling my patients that I wasn’t available. Fortunately, I get paid a guaranteed salary for the year, rather than getting paid per patient, so I was still drawing my paycheck! But eventually, I felt like I just couldn’t stand it anymore, and that if I wanted to actually practice medicine, rather than mostly just sitting alone in a basement, I had to leave. So I told Wags-a-Lot I was done, and I started my own clinic. A few dozen of my old regular patients started coming to see me soon after I opened my new place, even though some of them have to drive farther to get to my new place, and it’s been really gratifying to see their loyalty.

[end of materials]